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The Voice and the Hands

From the fifth portion of Toldot, Bereishit 26:30–27:27

הַקֹּל קוֹל יַעֲקֹב וְהַיָּדַיִם יְדֵי עֵשָׂו

“The voice is the voice of Jacob, but the hands are the hands of Esau” (Bereishit 27:22)

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Not for sale. For study at the table, in the beis midrash and at home.

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Yesterday Avimelech came to Beersheba asking for a treaty. Today the oath is sworn, the servants find water, and then the story turns inward, to Yitzchak's tent, a blind father, two sons, and one blessing. Today's Tanya opens a new essay that asks why, in our generation, the main work is done through prayer. Today's Hayom Yom says prayer needs life, and that you put life into it by giving to a poor man first. And today's Rambam asks what a partner may do with money that is not only his.

I. Today's portions

- **Chumash:** Toldot, fifth portion, Bereishit 26:30–27:27, with Rashi.
- **Tehillim:** chapters 10–17.
- **Tanya:** Kuntres Acharon, beginning of Essay 4.
- **Rambam, three chapters:** Hilchot Sheluchin veShuttafin 5–7, the Laws of Agents and Partners.
- **Rambam, one chapter:** Hilchot Ma'achalot Asurot 2, Forbidden Foods.
- **Sefer HaMitzvot:** Day 283, Positive Commandment 245, the laws of buying and selling (continued).
- **Also today:** 2 Kislev, the day in 5748 (1987) when the Chabad library's books and manuscripts were returned to their place after the court case. Daf Yomi is Bekhorot 55.

II. Hayom Yom

Chabad.org gives the entry for 2 Kislev 5704, a Monday. Its Chumash line reads "Vayeitsei, Sheini with Rashi", since that year was a week ahead of ours. The Tehillim line matches ours exactly: 10–17.

The Previous Rebbe tells what his grandfather, the Rebbe Maharash, taught about the Talmud's report that Rabbi Elazar gave a coin to a poor man and then prayed: "Davening must be with life." When you give a poor man charity before you pray, you give him life, and your own prayer gains life with it. The Rebbe Maharash lifted his hand upward to show how great that gain is. Then the Previous Rebbe adds about his own father: "Indeed my father would often seek out a pauper before davening to give him food."

The footnote marks today's date: "marking the actual return, in 5748 (1987) of the s'farim and k'tavim of the Rebbe'im to their rightful place in the library of Agudas Chasidei Chabad". The Rebbe noted it happened "on Monday of the Torah-portion 'I shall return in peace to my father's house,' on the second of Kislev". Hold that verse. We come back to it at the end.

III. Chumash with Rashi: Bereishit 26:30–27:27

The oath and the water. Yitzchak makes a feast for Avimelech's party, and early in the morning they swear to each other and part in peace. That same day his servants come with news: "We have found water!"

וַיֹּאמְרוּ לוֹ מָצָאנוּ מָיִם

Rashi on the name Shibah says it is "in allusion to the Covenant". The well and the oath carry one name. The city is still called Beer-sheba.

Esau's wives. At forty Esau marries two Hittite women, and "they were a source of bitterness to Isaac and Rebekah". Rashi opens with a comparison: "Esau is compared to a boar". The boar lies down and shows its split hoof, the sign of a kosher animal, and hides that it does not chew the cud. Esau shows the outside. Keep that picture for later in the portion.

The father who cannot see. "When Isaac was old and his eyes were too dim to see", he calls Esau and asks for game and a meal "so that I may give you my innermost blessing before I die." Rashi reads Yitzchak's instruction closely. Hunt "of animals that are ownerless, but not of such as are acquired by theft". Even a father asking for his favorite dish sets a limit on how it is gotten.

Rivka's plan. Rivka heard. She tells Yaakov to bring two kids from the flock. Rashi says these were hers by right: "these are mine and not the proceeds of theft", because her marriage contract gave her two kids a day. Yaakov is afraid. "But my brother Esau is a hairy man and I'm a smooth-skinned one." If his father touches him, "I shall appear to him as a trickster and bring upon myself a curse, not a blessing." Rivka answers at once: "Your curse, my son, be upon me".

The voice and the hands. Yitzchak feels him and says the line that has followed the Jewish people ever since: "The voice is the voice of Jacob, yet the hands are the hands of Esau".

וַיִּגַּשׁ יַעֲקֹב אֶל־יִצְחָק אָבִיו וַיְמֻשֵּׁהוּ וַיֹּאמֶר הַקֹּל קוֹל יַעֲקֹב וְהַיָּדַיִם יְדֵי עֵשָׂו

What gave Yaakov away? Rashi has two answers. First, Yaakov had mentioned G-d's name easily, and that was not Esau's way. Second, the tone: Yaakov spoke "because he speaks in an entreating strain", while "Esau, however, spoke in a harsh strain". The voice of Yaakov is a voice that asks. It is the voice of prayer.

"It is I." Yitzchak asks one more time whether this is really Esau. The answer is one word.

וַיֹּאמֶר אַתָּה זֶה בְּנִי עֵשָׂו וַיֹּאמֶר אֲנִי

Rashi points out that he did not say "I am Esau". He said only "I am". Under great pressure, Yaakov chose a word that was still true.

The smell of the field. Yitzchak kisses him and smells his clothes, and says "the smell of my son is like the smell of the fields" that G-d has blessed. Rashi asks how washed goatskins could smell good, and answers that "the perfume of the Garden of Eden entered the room with him". Rivka dressed him in Esau's clothes and covered his hands with skins. What came into the room with him was neither the skins nor the clothes. It was Eden.

IV. Tanya: Kuntres Acharon, beginning of Essay 4

The Alter Rebbe opens with a question from Pri Etz Chaim, the Arizal's book on prayer. It says that in our time the work of refining the sparks of holiness, the sparks that fell when the World of Tohu broke, is done mainly through prayer. Why prayer, "even though Torah study is superior to prayer"?

אַף שֶׁתַּלְמוּד תּוֹרָה לְמַעְלָה מֵהַתְּפִלָּה

His answer, briefly: Torah and mitzvot draw new light into Atzilut, the highest world, and that light reaches our lower worlds only in a reduced form. Prayer works from below. The commentary puts it plainly: "prayer alone can bring about changes within the world, healing the sick and causing rain to fall". So the request has to come from deep inside a person: "the plea that requests them must surge from a correspondingly deep source". Prayer is called "life of the moment", because it works in time and in this world. Torah is called "eternal life".

This is the voice of Yaakov in Kabbalistic terms. Torah is above. Prayer is the voice that reaches down into the world of hands and goatskins and lifts what is there.

V. Tehillim 10–17

Psalm 15 asks who may dwell on the holy mountain and answers with a list of conduct. It begins with one "who does what is right" and "in their heart acknowledges the truth".

הוֹלֵךְ תָּמִים וּפֹעֵל צֶדֶק וְדֹבֵר אֱמֶת בִּלְבָבוֹ

The same psalm praises one "who keeps an oath even when it hurts". That fits a day that opens with the oath at Beersheba.

Psalm 16 adds a line about inheritance on a day of blessings: "Delightful country has fallen to my lot".

Psalm 17 is titled "A prayer of David". David asks to be heard, "give ear to my prayer", and describes that prayer as "uttered without guile". It ends: "awake, I am filled with the vision of You". Read beside today's Chumash, the question is plain. Yaakov prayed in a voice that asked. Psalm 17 asks for a prayer without guile. The Torah does not hide how hard it is to hold both.

VI. Rambam: Sheluchin veShuttafin 5–7

Today's three chapters are about partners and investors.

Stay with the custom. A partner with no special terms "should not deviate from the local custom followed with regard to that merchandise". If he goes off on his own, selling on credit or taking the goods to sea, "he alone is liable to pay for any loss that occurs because of his activity", and any profit is still shared.

Not to another place. One partner wants to take the goods to a city where the price is high. The other may refuse, even if the first offers to cover any loss. The reason the Rambam gives is human and practical. The second partner can say: "I do not desire to give you the money that is in my possession and then have to pursue you and bring you to court to expropriate it from you". A guarantee on paper is worth less than goods that stay where both can see them.

Dividing fairly. A partner who wants to leave without the other's knowledge divides the assets "in the presence of three people", who need only be trustworthy and able to value property.

Half loan, half trust. In chapter 6 the Sages' arrangement for investment is set out. When one man gives another money to trade with, "half of the money should be considered a loan" and the other half is held in trust. In chapter 7, a storekeeper who is also a craftsman should not work at his craft in the shop, "for his attention is not focused on the store while he is working at his craft".

The thread through all three chapters is that whoever holds shared property holds it for someone else too. Esau's clothes were kept with his mother, Rashi says, because he did not trust his own wives with them. Shared property needs a holder both sides trust.

VII. Rambam, one chapter: Ma'achalot Asurot 2

The second chapter of Forbidden Foods covers non-kosher animals and then small creatures. One ruling gives a sense of how exact the law is: "one who eats an entire fly or an entire mosquito whether alive or dead is worthy of lashes for partaking of a flying teeming animal". A whole creature counts even when it is smaller than an olive. The boar

from this morning's Rashi belongs to the same chapter's world, with its one sign out and the other missing.

VIII. Sefer HaMitzvot: Day 283, Positive Commandment 245

The mitzvah of transactions continues while the three-chapter track stays in partnership law. It is "the ways in which purchases and sales between the buyers and the sellers become legally binding". Today's chapters show how far that reaches: two people who put money together keep making a transaction with every decision about where the goods go.

IX. Bridge: Toldot to Vayetze

The 5704 Hayom Yom calendar had today's reader in Vayetze, second portion. That portion includes Yaakov's vow at Bethel: if he is protected on his journey, "I return safe to my father's house".

וְשַׁבְתִּי בְשָׁלוֹם אֶל־בֵּית אָבִי

Today Yaakov enters his father's tent in his brother's clothes and leaves with a blessing he will have to run from. Next week he sets out from Beersheba and prays to come back to that same house in peace. On 2 Kislev 5748, in the week that verse was read, the books came back home. The blessing taken in Toldot is fulfilled only when Yaakov returns in Vayetze's terms, whole and in peace.

X. One line to carry

Give before you ask. The Rebbe Maharash taught that charity before prayer gives the prayer life, and the voice of Yaakov is the voice that asks gently.

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